

3. L&J ASSETS v. PREHODA, SC20050069**Motion to Extend Time for Service and Authorize Alternative Service**

On May 18, 2026, Bag Fund, LLC (“Bag Fund”) filed the instant motion seeking a court order to extend time to perform service of, and authorize alternative service for, the Application for Renewal of Judgment (submitted October 16, 2025), which needs to be personally served within 90 days of filing pursuant to Code of Civil Procedure section 683.180, subdivision (b).

1. Background

On November 4, 2005, plaintiff L&J Assets LLC (“plaintiff”) obtained a default judgment against defendant Kenneth Prehoda (“defendant”) in the amount of \$56,159.94. On February 26, 2007, plaintiff recorded an abstract of judgment in El Dorado County, thereby creating a lien on all of defendant’s real property located within the county. (See, Code Civ. Proc., § 674; *Industrial Indem. Co. v. Levine* (1975) 49 Cal.App.3d 698, 713 [recording of abstract of judgment creates a lien on real property of the judgment debtor located in county where abstract of judgment is recorded].) It appears that, at the time the abstract of judgment was recorded, defendant owned the real property located at 1048 Trout Creek in South Lake Tahoe, California (the “Property”).

In 2008, plaintiff assigned the judgment to Bag Fund. In 2013, defendant recorded a transfer of the Property to his daughter (Bona Prehoda a/k/a Bona Gail a/k/a Bona Gail Hebert). On October 19, 2015, Bag Fund renewed the judgment for 10 years.

In 2018, defendant’s daughter recorded a transfer of the Property to Mark Babo and Doreen Babo.

On October 16, 2025, Bag Fund filed another Application for Renewal of Judgment.¹

¹ On January 30, 2026, the court granted Bag Fund’s motion for a *nunc pro tunc* order deeming its Application for Renewal of Judgment to be recorded in the El Dorado County Recorder’s Office as of October 19, 2025.

2. Legal Principles

“A judgment lien on real property is effective only during the period of enforceability of the judgment. [Citations.] Like the judgment, the judgment lien can also be extended by 10 years if renewed. ([Code Civ. Proc.,] § 683.180, subd. (a); § 697.310, subd. (b).)” (*Starcevic v. Pentech Financial Services, Inc.* (2021) 66 Cal.App.5th 365, 375.) In order to maintain the lien priority, the judgment creditor must comply with Code of Civil Procedure section 683.180. “Once renewed, ‘[t]he priority of the judgment lien on an interest in real property remains the same.’ [Citations.]” (*Starcevic, supra*, at p. 375.)

As provided in Code of Civil Procedure section 683.180, subdivision (b),² if the interest in real property has been transferred subject to the lien and the transfer has been recorded, an extension pursuant to this section extends the lien on the property in the hands of the transferee only if the transferee is served notice of the renewal and proof of service is filed within the prescribed time. “[T]he obvious purpose of [Code of Civil Procedure] section 683.180 is to provide notice to third persons that a judgment lien has been extended. [Citation.]” (*Beneficial Financial, Inc. v. Durkee* (1988) 206 Cal.App.3d 912, 917.)

3. Discussion

Based on a filing date of October 16, 2025, Code of Civil Procedure section 683.180 required Bag Fund to personally serve a copy of the Application for Renewal upon the transferees, Mark Babo and Doreen Babo, on or before January 14, 2026. Bag Fund claims that, despite diligent efforts, it has been unable to personally serve the Babos. (See, Clark Decl., ¶¶ 4–11 & Exs. A, B.) As such, Bag Fund seeks to extend the time to

² Code of Civil Procedure section 683.180, subdivision (b) provides: “A judgment lien on an interest in real property that has been transferred subject to the lien is not extended pursuant to subdivision (a) if the transfer was recorded before the application for renewal was filed unless both of the following requirements are satisfied: [¶] (1) A copy of the application for renewal is personally served on the transferee. [¶] (2) Proof of such service is filed with the court clerk within 90 days after the filing of the application for renewal.” (Code Civ. Proc., § 683.310, subd. (b).)

serve the Babos and obtain the court's authorization to serve the Babos by publication or mail.

The court has reviewed the declarations of diligence submitted by Bag Fund. The declarations do not show that Bag Fund made any attempt to personally serve the Babos before the January 14, 2026, deadline. The earliest attempt did not occur until March 23, 2026. Thus, even if the court had the authority to extend the statutory deadline (the court is not convinced it does), it would still deny Bag Funds requests under the circumstances.

TENTATIVE RULING # 3: THE MOTION IS DENIED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.